

KEDDINGTON VS. GOLDEN STATE FARM CREDIT, ACA, ET AL.

Case Number: 23CV-0201777

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 30, 2025. The Court designates this matter EXEMPT from case disposition time standards. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

SCHWERDT, ET AL. VS. SCHLAPIA, ET AL.

Case Number: 24CV-0204563

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 6, 2025. Plaintiff has filed a status conference statement indicating that Plaintiffs and Defendant Wampler have commenced discovery, and have proposed sending transcripts to AAA in hopes they will assign her counsel. Plaintiffs request a 60 day continuance for trial setting. This matter is continued to **Monday, May 12, 2025 at 9:00 a.m. in Department 64** for review regarding trial setting. No appearance is necessary on today's calendar.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

Case Number: 23CV-0203137

This matter is on calendar for review regarding status of service. The case is still not at issue. It appears that none of the Defendants have been properly served. The proofs of service on file for Bridgeway Inn & Suites and Tera Sahara, Inc. appear to be invalid. The proof of service filed December 2, 2024 indicates Bridgeway Inn & Suites' agent for service could not be ascertained, and that service was on a Sean Doe. This is not a valid method of service on a business entity. See CCP §§ 415.30, 416.10-416.40. The proof of service filed February 27, 2025 for Tera Sahara, Inc. indicates that the process server discovered that the location is now called "Guest Place" and the agent for service is out of state. Service was on a "Mohkn Doe – Manager." Again, this is not a valid method of service on a business entity. Additionally, it is unclear what relationship, if any, "Guest Place" has to the named Defendant.

The Complaint in this matter was filed on September 1, 2023 and there is still no valid Proof of Service of Summons on file for Defendants David Lin, Laura Doe, Bridgeway Inn & Suites, or Tera Sahara, Inc. The Court has previously imposed sanctions, which have not been paid. The Court has previously issued an OSC re Dismissal, which was vacated at Plaintiff's request, upon assurances that this matter would soon be at issue. The Court will issue another OSC re Dismissal for failure to abide by California Rules of Court 3.110 and 3.1380. Given the long history of Plaintiff's failure to abide by the Rules of Court despite numerous continuances, it appears to the Court that no lesser sanction would be effective. Hearing on the OSC re Dismissal will be set for **Monday, April 21, 2025 at 8:30 a.m. in Department 64**. The clerk is directed to prepare a separate OSC re Dismissal.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,988.00 U.S. CURRENCY

Case Number: 22CV-0201191

This matter is on calendar for review regarding status. The Court notes that the matter is set for hearing at 8:30 a.m. today on an OSC re Dismissal of Claimant's Claim Opposing Forfeiture, which the Court intends to grant. An appearance is necessary on today's calendar to set a hearing